THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH, CHANDIGARH

IA(CA) No. 16/2023
And
CP (CAA) No. 12/Chd/Hry/2023
(2nd Motion)

Under Sections 230 to 232 of the Companies Act, 2013 read with Companies (Compromise, Arrangements and Amalgamations) Rules, 2016

IN THE MATTER OF SCHEME OF AMALGAMATION:

SSK Automotive Private Limited
CIN: U34102HR2011PTC043269
PAN: AAQCS1007E

…. Petitioner Company No. 1/Transferor Company

With

HGI Automotives Private Limited
CIN: U35999HR1998PTC033955
PAN: AAACH7339C

…Petitioner Company No. 2/Transferee Company

Present : -

Mr. Mast Ram Chechi, Practising Company Secretary for the applicant in IA(CA) No. 16/2023 and for the petitioner companies.

IA(CA) No. 16/2023

This present application has been filed under Rule 11 of the NCLT Rules, 2016 for condonation of delay of 50 days in filing the Second Motion Petition. It is stated by learned counsel for the petitioner that the delay was due to the non-availability of the signatory of the Petitioner Companies. In view of such fact, the delay of 50 days is condoned and the present application i.e. IA(CA) No. 16/2023 is allowed and stands disposed of accordingly.

CP (CAA) No.17/Chd/Hry/2023

2. This is a second motion company petition filed by the Petitioner-Companies, namely; **SSK Automotive Private Limited** (for short hereinafter referred to as Petitioner Company No.1/Transferor company and **HGI Automotives Private Limited** ("Petitioner Company No. 2/Transferee Company"), in relation to the Scheme of Amalgamation between the companies under Section 230-232 of Companies Act, 2013 (the Act).

3. In its petition, the petitioner companies have prayed inter alia to issue directions in relation to publication in the press and notices to be issued to the authorities concerned in relation to the date of hearing of the petition and calling for objections.

4. The first motion application seeking directions for convening/dispensing with the requirement of the meetings of its Equity Shareholders, Secured and Unsecured creditors of Applicant Companies was filed before this Tribunal by Company Application No. 44/Chd/Hry/2022 and based on such application necessary directions were issued on 08.12.2022. In the order dated 08.12.2022, the meetings of Equity Shareholders, Secured and unsecured creditors of Applicant Companies were dispensed with for the reasons mentioned in the aforesaid order.

5. The notice of hearing will be advertised in "Financial Express" (English, Delhi NCR Edition) and "Jansatta" (Hindi, Delhi NCR Edition) not less than 10 days before the next date fixed for the hearing.

6. In addition to the above public notice, the Petitioner Companies shall serve the notice of the petition on the following Authorities namely, a) Central Government through Regional Director (Northern Region), Ministry of Corporate

Affairs; New Delhi; (b) Concerned Registrar of Companies; (c) Official Liquidator, Jammu and Kashmir and (d) Jurisdictional Income Tax Authorities through the Nodal Officer-Principal Commissioner of Income Tax, NWR, Aayakar Bhawan, Sector 17-E, Chandigarh by mentioning the PAN of the company along with a copy of this petition by speed post immediately.

7. The Petitioner Companies shall at least 7 days before the date of hearing of the petition file an affidavit of service regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

8. The next date of hearing of the petition shall be on 05.09.2023 for the consideration of the approval of the scheme as contemplated between the petitioner company.

9. The Registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

Sd/-
(Subrata Kumar Dash)
Member (Technical)

Sd/-
(Harnam Singh Thakur)
Member (Judicial)

June 12, 2023
SA/VN